

No. 177. An act relating to transforming Vermont's career technical education system.

(S.313)

It is hereby enacted by the General Assembly of the State of Vermont:

Sec. 1. FINDINGS

The General Assembly finds that:

(1) Vermont has unmet workforce needs and skills gaps, while a growing percentage of the decreasing school-aged population is not continuing on to further their education.

(2) To help reverse these trends, every student should graduate with a plan for what comes next after high school, whether that is continued education or training, military service, or entering the workforce.

(3) A growing body of research shows that the fulfillment of this vision requires the creation of a career navigation system that includes intentional, coordinated, and equitable local, regional, and statewide programming from elementary school through high school. The system should ensure that students gain awareness of post-high school career and education opportunities through career exploration, personalized guidance, work-based learning, flexible pathways programming, and credentials of value that support successful transitions beyond high school.

(4) CTE is an essential tool to realize this vision. CTE engages students in hands-on instruction and applied learning that builds practical skills, develops career readiness, and provides pathways to industry-recognized

credentials and postsecondary credit. Vermont's CTE system must ensure that every student, regardless of geography, identity, or school, has access to high-quality career technical education opportunities.

Sec. 2. CAREER TECHNICAL EDUCATION SYSTEM

TRANSFORMATION; LEGISLATIVE INTENT

To realize a strong statewide career preparation system, it is the intent of the General Assembly to transform Vermont's career technical education (CTE) system as follows:

(1) Provide universal access to CTE, ensuring that every student can participate in CTE programming, including pretech and foundations courses, by:

(A) increasing exposure to and early awareness of CTE in middle school and the first two years of high school;

(B) addressing barriers such as transportation, scheduling conflicts, and awareness;

(C) providing consistency in admissions policies while allowing for program-specific requirements related to readiness, sequencing, and safety; and

(D) ensuring that no student may be placed on a waitlist or prevented from accessing CTE for lack of capacity where there is a viable alternative program that aligns with the student's intended program of study and meets program requirements, including sequencing and safety concerns, through the

provision of transportation, supported through a state-level funding or coordination mechanism.

(2) Enable flexible delivery models, expanding beyond regional technical centers to offer multiple pathways for students to access CTE programming and graduate with required high school courses by:

(A) delivering programs at sending high schools or in a hybrid format where appropriate, provided that program quality, industry alignment, and access to necessary equipment and facilities are maintained; and

(B) utilizing shared resources and technology to improve educational access and limit transportation needs.

(3) Align the CTE system with workforce needs by designing and evaluating programs based on current and emerging Vermont labor market demands, continue robust evaluation of the system through the Comprehensive Local Needs Assessment process, and utilize statewide research from Vermont's Most Promising Jobs and VT Labor Market Information to assess student outcomes in continuing to the workforce.

(4) Create a sustainable, student-centered funding system that removes disincentives for participation and supports program growth and innovation. Flexible delivery models and access must be taken into consideration to ensure the sustainability of program delivery.

(5) Explore the viability and impact of CTE centers becoming diploma-conferring institutions or comprehensive high schools. In situations where this

is not possible, high schools shall be required to award the credits recommended by a CTE center.

(6) Maintain a strong adult CTE system by building robust adult and continuing education pathways within CTE that meet Vermont’s upskilling, reskilling, and workforce development needs while connecting seamlessly with secondary programs and regional workforce partners. Such a system shall have a governance and funding model that promotes coordination, quality, program consistency, and sustainability.

(7) Coordinate CTE governance by establishing governance approaches that strengthen collaboration across districts, improve consistency and program quality, and better support positive student outcomes. CTE governance should align with the ongoing education transportation process, with the above goals as the lens through which decisions are made.

Sec. 3. CAREER TECHNICAL EDUCATION; GUIDANCE

On or before September 18, 2026, the Agency of Education, in collaboration with the Vermont Association of Career and Technical Directors and the Vermont Superintendents Association, shall issue guidance on the following topics, which shall reflect the current career technical education system as it exists on July 1, 2026, in an effort to provide clarity to the field prior to updates to the career and technical education rules:

(1) updates to definitions, including definitions for “CTE programs,” “credentials,” “embedded academics,” and “satellite models”;

- (2) credit standards and competency-based pathways;
- (3) work-based learning sequencing aligned with Occupational Safety and Health Administration standards and federal hazard orders;
- (4) minimum safety, space, and equipment standards;
- (5) data and reporting alignment with Perkins V; and
- (6) explicit allowance for differentiated regional delivery models.

Sec. 4. 16 V.S.A. § 1532 is amended to read:

§ 1532. MINIMUM STANDARDS; MEASUREMENT OF STANDARDS;

RULES

(a) The State Board shall adopt by rule:

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(b) The following shall be adopted by procedure or rule:

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(c) The State Board shall review the rules and procedures adopted pursuant to this section not less than every five years and shall update the rules and procedures as necessary.

Sec. 5. AGENCY OF EDUCATION RECOMMENDATIONS; LICENSING
OF CAREER AND TECHNICAL EDUCATION EDUCATORS;
ENFORCEMENT INTERVENTION PATHWAY; FLEXIBLE
PATHWAYS; REPORT

On or before January 15, 2027, the Agency of Education shall submit a written report to the House Committees on Commerce and Economic

Development and on Education and the Senate Committees on Economic

Development, Housing and General Affairs and on Education, with

recommendations for the following:

(1) In collaboration with the Standards Board for Professional Educators, recommendations regarding career technical education (CTE) educator endorsement requirements that will balance the need for increased access to CTE educators with industry expertise and experience with the need for ensuring CTE educators are qualified to provide education in their specialty fields, without unintentionally creating additional barriers or complexity. Such recommendations shall include both necessary statutory changes as well as recommended changes to applicable State Board of Education rules.

(2) A pre-enforcement intervention pathway that is responsible for:

(A) supporting interpretation and implementation of CTE rules and statute;

(B) providing early-stage mediation between CTE centers and sending districts;

(C) documenting patterns of noncompliance or systemic barriers; and

(D) escalating unresolved or repeated issues for formal enforcement.

(3) Updates to the Flexible Pathways Initiative created within the Agency pursuant to 16 V.S.A. § 941 that alleviate statewide inconsistencies with how flexible pathways are accessed and how personalized learning plans are created, updated, and utilized, including:

(A) recommendations for a statewide framework for career navigation consistent with the requirements of 16 V.S.A. chapter 23, subchapter 2, including:

(i) grade-level competency standards for students in prekindergarten through grade 12 related to career exploration and planning that are designed to ensure that each student develops the knowledge, skills, and experiences necessary to graduate with a clear, actionable, and adaptable plan for career and educational next steps; and

(ii) evidence-informed educational resources, activities, and curricula that support opportunities for awareness and exploration of and planning for career and education pathways both in and out of the classroom setting;

(B) recommendations for statewide professional development programming to help individuals within the public education system who have direct contact with students build role-specific knowledge and skills necessary to support students in developing post-high school career and education plans;

(C) recommendations for a model career navigation policy that is integrated within comprehensive system improvement efforts to strengthen prekindergarten through grade 12 academic proficiency and that:

(i) establishes a framework for school districts to embed grade-level competencies related to career exploration directly into core academic

instruction, ensuring that career-aligned learning supports the attainment of rigorous student performance standards;

(ii) ensures that students engage in meaningful career education exploration and planning activities that reinforce academic growth and the real-world application of classroom learning; and

(iii) utilizes a process by which each student develops and updates a personalized learning plan in accordance with 16 V.S.A. § 941(b)(2), serving as a primary tool for tracking both academic proficiency and evolving career interests; and

(D) an analysis of data collection system capabilities and gaps related to flexible pathways, personalized learning plans, and college and career readiness.

(4) Recommendations for ensuring Adult Diploma Program (ADP) participants have access to the educational programs that best serve their needs, including career technical education, while also complying with federal and State requirements for adult education, as well as recommendations for how access to such educational programs shall be funded through the use of State funds. If federal or State law is identified as a barrier, the report shall cite the applicable law and explain how it is a barrier to ADP participants' access to the educational program at issue.

Sec. 6. COMPREHENSIVE HIGH SCHOOLS REDEFINED; INTENT

(a) 16 V.S.A. § 1522(14) defines a comprehensive high school as “a public or independent school other than a career technical center that provides secondary career technical education approved under section 1533 of this title.” As Vermont works to transform its career technical education (CTE) system to increase the access, quality, and opportunity of CTE programming available to Vermont students, the concept of a comprehensive high school could be expanded to achieve these goals. It is the intent of the General Assembly to move toward a model of comprehensive high schools that would offer all opportunities available to students within the public education system, to be defined as “a public or independent school other than a career technical center that fully integrates the provision of career technical education with the provision of general education in one school building or on one school campus, with a single budget for both CTE education and general education.”

(b) Any recommendations issued to the General Assembly regarding how to achieve regional high schools, how to achieve more comprehensive high schools, or how to embed career technical education within secondary schools shall consider the definition of comprehensive high school the General Assembly intends to move toward pursuant to subsection (a) of this section, or any other model that creates high schools that share operational costs, expand opportunities, and improve educational equity across a broad geographical area, to guide such recommendations.

Sec. 7. 16 V.S.A. § 1545 is amended to read:

§ 1545. CREDITS AND GRADES EARNED

(a) ~~Grades~~ Credits or proficiencies and grades earned in a course offered within a CTE program approved by the State Board shall not be altered by any public school or approved or recognized independent school in Vermont and shall be applied by the school toward any State graduation requirements in accordance with rules adopted by the State Board. Any State Board rules regarding earning of credits or proficiencies shall allow flexibility with respect to the integration of CTE education and other academic courses.

(b) The credits or proficiencies earned for a career technical education program approved by the State Board shall be honored by any public or independent school within Vermont. If necessary to enable a student to participate in career technical education and graduate with ~~his or her~~ the student's class, the credits or proficiencies earned shall be applied toward any school district or independent school graduation requirements exceeding the minimum number of credits or proficiencies required by the State Board. The school board of the high school from which the student wishes to graduate shall ~~make a determination as to whether the credits shall be applied~~ apply credits or proficiencies earned for a career technical education program approved by the State Board toward graduation requirements. A decision of a school board may be appealed to the Secretary who shall construe this section to favor participation in career technical education.

(c) For any student attending the Vermont Academy for Science and Technology pursuant to subsection 4011(e) of this title, the credits or proficiencies and grades earned shall, upon request of the student or the student's parent or guardian, be applied toward graduation requirements at the Vermont high school that the student attended prior to enrolling in the Academy.

Sec. 8. [Deleted.]

Sec. 8a. 21 V.S.A. § 471 is amended to read:

§ 471. DEFINITIONS

As used in this subchapter:

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(5) "Employee" means a person who, in consideration of direct or indirect gain or profit, has been continuously employed by the same employer for a period of one year for an average of at least 30 hours per week or meets the service requirement set forth in 29 C.F.R. § 825.801 (airline flight crew employees) or 29 C.F.R. § 825.110(c)(3) (full-time teachers, as defined in 29 C.F.R. § 825.102, of an elementary or secondary school system or institution of higher education).

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Sec. 8b. 21 V.S.A. § 495d is amended to read:

§ 495d. DEFINITIONS

As used in this subchapter:

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(15) “Crime victim” means any of the following:

(A) a person who has obtained a relief from abuse order issued under 15 V.S.A. § 1103;

(B) a person who has obtained an order against stalking or sexual assault issued under 12 V.S.A. chapter 178;

(C) a person who has obtained an order against abuse of a vulnerable adult issued under 33 V.S.A. chapter 69; ~~or~~

(D)(i) a victim as defined in 13 V.S.A. § 5301, provided that the victim is identified as a crime victim in an affidavit filed by a law enforcement official with a prosecuting attorney of competent state or federal jurisdiction; and

(ii) shall include the victim’s child, foster child, parent, spouse, stepchild or ward of the victim who lives with the victim, or a parent of the victim’s spouse, provided that the individual is not identified in the affidavit as the defendant; or

(E) a person who is a survivor of domestic violence, sexual assault, or stalking and who has supporting documentation from any one of the following sources:

(i) a court or law enforcement or other government agency;

(ii) a domestic violence, sexual assault, or stalking assistance program;

(iii) a legal, clerical, medical, or other professional from whom the person has received counseling or other assistance concerning domestic violence, sexual assault, or stalking; or

(iv) a self-attestation by the person describing the circumstances supporting the person's status as a survivor of domestic violence, sexual assault, and stalking for which no further corroboration shall be required unless otherwise mandated by law.

* * *

(18) "Domestic violence" has the same meaning as in 15 V.S.A. § 1151 and includes the definition of "abuse" in 15 V.S.A. § 1101.

(19) "Sexual assault" has the same meaning as in 12 V.S.A. § 5131.

(20) "Stalking" has the same meaning as in 12 V.S.A. § 5131.

Sec. 8c. 21 V.S.A. § 495g is amended to read:

§ 495g. ~~PROVISION APPLICABLE TO COLLEGE PROFESSORS~~

~~Nothing in this subchapter shall be construed to prohibit any institution of higher education as defined by section 1201(a) of the federal Higher Education Act of 1965 from retiring any employee who is serving under a contract of unlimited tenure, who attains 70 years of age. Any employee whose tenure contract is terminated may, in the discretion of the institution, be allowed to continue in the employ of the institution on a nontenured basis. [Repealed.]~~

Sec. 8d. 21 V.S.A. § 383 is amended to read:

§ 383. DEFINITIONS

As used in this subchapter:

(1) “Commissioner” means the Commissioner of Labor or designee.

(2) “Employee” means any individual employed or permitted to work by an employer except:

* * *

(H) outside salespersons; ~~and~~

(I) students working during all or any part of the school year or regular vacation periods; and

(J) elected and appointed municipal officers.

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Sec. 8e. 21 V.S.A. § 495q is added to read:

§ 495q. AGREEMENTS WITH HEALTH CARE PROVIDERS

(a) Any provision in a contract or agreement that creates or establishes the terms of a partnership, employment, or any other form of professional relationship with a health care provider regarding the health care provider’s provision of health care services in Vermont shall be void and unenforceable if the provision:

(1) includes a restriction on the right of the health care provider to provide health care services in any geographical area for any period of time after the termination of such partnership, agreement, or professional relationship;

(2) limits the ability of a separating health care provider to provide notice of the provider's change of employment to individuals to whom the separating provider provided direct health care services;

(3) restricts a health care provider from making disparaging statements about another party to the contract or agreement or about another person specified in the agreement as a third-party beneficiary of the agreement;

(4) is inconsistent with Vermont law; or

(5) requires litigation arising from the performance of the contract or agreement in Vermont to be conducted in another state.

(b) The notice provided in subdivision (a)(2) of this section may include the following information:

(1) that the health care provider is continuing to practice the provider's profession;

(2) the health care provider's new professional contact information; and

(3) the recipient's right to choose a health care provider.

(c) The provisions in subsection (a) of this section do not apply to restrictions that limit a health care provider who contracts with a third-party company for nonclinical business support services from opening a business within a specific territory supported by a different third-party company providing nonclinical services.

(d) “Health care provider” means a person licensed, certified, or authorized by law to provide professional health care service in this State to an individual during that individual’s medical care, treatment, or confinement.

(e) An employer shall not discharge or in any other manner retaliate against an employee who exercises or attempts to exercise the employee’s rights under this section. The provisions against retaliation in subdivision 495(a)(8) of this subchapter and the penalty and enforcement provisions of section 495b of this subchapter shall apply to this section.

(f) This section shall apply to contracts and agreements entered into on or after July 1, 2026.

Sec. 9. EFFECTIVE DATE

This act shall take effect on passage.

Date Governor signed bill: June 18, 2026